

HOUSE No. 3557

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reporting on double poles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/16/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>2/6/2026</i>

HOUSE No. 3557

By Representative Roy of Franklin, a petition (accompanied by bill, House, No. 3557) of Jeffrey N. Roy relative to reporting on double poles. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reporting on double poles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) On or before April 1, 2027, all telephone companies and distribution companies as
2 defined in chapter 164 of the General Laws shall jointly prepare and file an annual report to the
3 joint committee on telecommunications, utilities and energy and the joint committee on
4 municipalities and regional government. The annual report shall include the following
5 information as of December 31, 2026: (i) the number of double poles at the beginning and end
6 of the reporting period; (ii) double pole activity, including all attachments transferred during
7 2026; (iii) the number of unlicensed commercial and municipal attachments; (iv) the average
8 number of days between the erection of the second pole and takedown of the original defective
9 pole when there are no unlicensed attachments on the original pole; and (v) the average number
10 of days between the erection of the second pole and the takedown of the defective pole when
11 there is at least 1 unlicensed attachment on the original pole. The companies shall also provide,
12 in the report, a timeline for projected removal of existing double poles as of December 31, 2026,
13 and such timeline shall include the projected cost associated with the removal. The companies

shall also provide a list of communities and municipal electric companies that participate in the statewide notification system utilized to facilitate the notification process for electronically alerting attachment owners to transfer and remove equipment attached to double poles. Annual reports shall also be filed, pursuant to all requirements of this section, in perpetuity thereafter by April 1 of each calendar year.

(b) Notwithstanding any general or special law, rule, regulation, or order to the contrary, the department of public utilities and the department of telecommunications and cable shall jointly issue a report relative to double poles within the Commonwealth within 90 days following the passage of this act. The report shall provide an assessment of progress made in reducing the number of double poles in the commonwealth since the issuance of the reports previously issued pursuant to Section 239 of Chapter 218 of the Acts of 2016 and through December 31, 2025 relative to reducing the number of double utility poles within the commonwealth.